73. On the question of why Muslims were left out, Shah argued that 'where there is in an Islamic state, Muslims cannot be termed religious minorities'. He questioned if Muslims in Pakistan, Afghanistan and Bangladesh could be termed minorities and argued that the possibility of their religious prosecution in these countries was very low. If it did still happen, then provisions to grant citizenship to such Muslims from these countries existed in the law. Shah emphasised that in the five years of the Modi government, over 566 Muslims from these countries had been given citizenship. He quoted several court judgements to argue that CAA did not hurt Article 14 of the Constitution that guarantees the Right to Equality. He further argued that, in the past, the Congress chief minister of Rajasthan had written to the Congress's then Union home minister, P. Chidambaram, to provide refugee status to Hindu and Sikh communities from Pakistan—and it was then given to 13,000 of them. Shah's full speech in Rajya Sabha on 11 December 2019 available at: https://www.youtube.com/watch?v=kKyx89AUaQM.
74. The full text of this judgment is available on *Supreme Court of India, Romesh Thappar vs The State of Madras, 26 May 1950, Equivalent Citations: 1950 AIR 124, 1950 SCR 594*, https://indiankanoon.org/doc/456839/.
75. In a fascinating debate in Parliament on the First Amendment, when an exasperated Nehru reacted to opposition complaints by announcing that he had 'put up so much from a few members who had dared to oppose us', Mookerjee responding by accusing the prime minister of using the 'language of a dictator'. The prime minister shot back saying that 'hard dealing' would lead to 'hard blows' all around. He laid down the gauntlet saying 'we challenge them [the opposition] to a combat here, in the marketplaces, in the country, everywhere and on every level'. Mookerjee interjected saying, 'Except in physical combat, to much comic relief in the house'. Staff Correspondent, 'First amendment to 17-month-old Constitution passed', *The Times of India*, 3 June 1951. It was given presidential assent on 18 June 1951.
76. All details on first amendment and Nehru–Patel quotes on this from Abhinav Chandrachud, *Republic of Rhetoric: Free Speech*